

SOFTWARE SUBSCRIPTION AGREEMENT

This Software Subscription Agreement is entered into between Nordwind Industrie GmbH (the "Customer") and Helvetia Signal Systems AG (the "Provider").

1. SUBSCRIPTION

The Provider grants the Customer a non-exclusive subscription to the planning platform described in Schedule A for the number of named users stated in the order form.

2. TERM

This Agreement is effective as of 1 October 2025 and shall expire on 15 September 2026.

3. AUTOMATIC RENEWAL

This Agreement shall automatically renew for a further period of twelve months at the end of the then current term, unless either party gives 92 days written notice of non-renewal. The subscription fee for a renewal term may increase by up to 5 per cent.

4. TERMINATION

Either party may terminate this Agreement on 90 days written notice with effect from the end of the then current term. The Provider may suspend the service if an undisputed invoice remains unpaid 30 days after its due date.

5. FEES

The annual subscription fee is EUR 148,000, invoiced annually in advance. Fees are exclusive of VAT and of any third party connectivity charges.

6. PAYMENT TERMS

The Customer shall pay each invoice net 30 days from the date of invoice.

7. SERVICE LEVELS

The Provider shall maintain a monthly availability of 99.9% for the production environment, measured monthly and excluding scheduled maintenance. The Provider shall respond to a Severity 1 incident within 30 minutes and shall provide a monthly service report.

8. SERVICE CREDITS

If monthly availability falls below the level in clause 7, the Customer is entitled to a service credit of 5 per cent of the monthly fee for each full percentage point below the target, capped at 25 per cent of the monthly fee. Service credits are the Customer's sole remedy for a failure to meet the service levels.

9. LIMITATION OF LIABILITY

The Provider's total aggregate liability under this Agreement shall not exceed the fees paid in the twelve months preceding the claim. Neither party is liable for indirect or consequential loss.

10. INDEMNIFICATION

The Provider shall indemnify the Customer against third party claims that the platform infringes an intellectual property right, and shall defend the Customer against such claims at its own expense.

11. CONFIDENTIALITY

Each party shall keep the other party's Confidential Information confidential and shall use it only for the purposes of this Agreement.

12. DATA PROTECTION

The Provider acts as data processor for personal data processed in the platform. The parties have entered into the data processing agreement in Schedule C, which reflects Article 28 of the General Data Protection Regulation. The Provider shall not appoint a sub-processor without the Customer's prior written consent, and shall notify the Customer of any personal data breach without undue delay.

13. INSURANCE

The Provider shall maintain professional indemnity insurance with a minimum cover of CHF 3,000,000 in the aggregate.

14. ASSIGNMENT

Neither party may assign this Agreement without the prior written consent of the other party.

15. FORCE MAJEURE

Neither party is liable for a failure to perform caused by an event beyond its reasonable control.

16. GOVERNING LAW

This Agreement is governed by and construed in accordance with the laws of Switzerland.

17. DISPUTE RESOLUTION

The courts of Zurich have exclusive jurisdiction over any dispute arising out of this Agreement.

Signed on 12 September 2025.